

26CHCV00704 26CHCV00704

County: los-angeles

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Case Number: 26CHCV00704 Hearing Date: September 8, 2026 Dept: F43

Dept. F43

Hearing Date: 09-08-26

Case # 26CHCV00704, Rutchland v.

Tesla, Inc.

Trial Date: N/A

MOTION FOR ATTORNEY

FEES AND COSTS

MOVING PARTY: Plaintiff Michael Rutchland

RESPONDING PARTY: Defendant Tesla, Inc.

RELIEF REQUESTED

Order awarding plaintiff \$14,756.02: \$10,620 in attorney fees for litigating this matter; \$625 in paralegal and assistant fees; \$2,880 in attorney fees related to the instant motion; and \$631.02 in costs and expenses.

RULING: Motion is granted in the reduced amount of \$10,831.02: \$10,200 in attorney fees and \$631.02 in costs and expenses.

SUMMARY OF ACTION

On February 17, 2026, plaintiff Michael Rutchland (Plaintiff) filed this lemon law action against defendant Tesla, Inc. (Defendant), asserting five Song-Beverly causes of action and a violation of the Tanner Consumer Protection Act.

Plaintiff alleges he purchased a new 2021 Tesla Model 3 on August 15, 2021, the vehicle exhibited several nonconformities and defects during the warranty period, and Defendant failed to repair, replace, or make restitution for the vehicle. Defendant filed an answer on March 27, 2026.

On March 27, 2026, the parties settled the matter, but no notice of settlement appears in the court record. Pursuant to the settlement, Defendant agreed to repurchase the subject vehicle for \$69,000, the parties stipulated that Plaintiff is the prevailing party, and the parties agreed the court would determine Plaintiff's reasonable attorney's fees, costs, and expenses pursuant to a noticed motion under Civ. Code, § 1794, subd. (d). (Declaration of Arvin Mousavi, Exh. B.)

On June 8, 2026, Plaintiff filed the instant motion seeking \$14,756.02 in attorney fees, costs, and expenses. Defendant filed an opposition on July 21, 2026, and Plaintiff replied on August 31, 2026.

ANALYSIS

A. Awarding Attorney Fees

A prevailing party is entitled to recover its attorneys' fees when authorized by contract, statute, or law. (See Code Civ. Proc., § 1033.5, subd. (a)(10); Civ. Code, § 1717, subd. (a).)

"A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (Bowman v. City of Berkeley (2005) 131 Cal.App.4th 173, 178.) If a buyer prevails in a Song-Beverly action, then the buyer is allowed to recover attorney fees. (Civ. Code, § 1794, subd. (d).)

Because Plaintiff is a "buyer" and this matter settled in Plaintiff's favor, Plaintiff is the prevailing party pursuant to Civil Code section 1794, subdivision (d).

1. Hourly

Rates

Plaintiff requests hourly rates of \$600 for attorney

Arvin Mousavi and \$250 for paralegal work.

(Declaration of Arvin Mousavi ¶¶ 12-13.)

Mr. Mousavi is the principal attorney at his firm, Mousavi Law Firm, PC,

and is admitted to practice in California and Arizona. (Id. ¶ 10.) The firm focuses on personal injury and

Song-Beverly cases. Prior to founding

his own practice, Mr. Mousavi worked at Simpson Thacher & Bartlett, LLP

where he billed at rates exceeding \$1,000 per hour. (Id. ¶ 11.)

In opposition, Defendant contends the requested attorney hourly

rate is unreasonable and not supported by evidence. (Opp. at p. 8:8-13:9.) According to Defendant, the \$600 rate is not

a noncontingent rate, but Mr. Mousavi fails to present evidence supporting the

noncontingent rate, considering he was first admitted to the California State

Bar in December of 2024 and worked at a complex litigation law firm for a year

and two months as an associate. Defendant

claims Mr. Mousavi opened his practice one month before filing this

matter. Recent court and arbitration

decisions support lowering the hourly rate to a market rate ranging from \$235

to \$350 per hour.

“The reasonable hourly rate is that prevailing in the

community for similar work.” (PLCM

Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) The moving party bears the initial burden of

establishing the prevailing market “through its own affidavits.” (MBNA Am. Bank, N.A. v. Gorman (2006)

147 Cal.App.4th Supp. 1, 13.) Once the

moving party presents competent evidence of prevailing rates, the burden shifts

to the opposing party. The opposing

party may present rulings which concern hourly rates for comparable work from

the relevant legal market. (Bronshteyn

v. Dept. of Consumer Affairs (2025) 114 Cal.App.5th 537, 543, 546-547; Baer v. Tedder (2025) 115 Cal.App.5th

1139, 1160-1162.) The court must engage

in an objective analysis “to determine the prevailing rate in the community for

comparable professional legal services[.]” (Graciano v. Robinson Ford Sales, Inc.

(2006) 144 Cal.App.4th 140, 156, citation omitted.) The court may “consider the attorney’s skill

as reflected in the quality of the work, as well as the attorney’s reputation

and status.” (MBNA Am. Bank, N.A.,

supra, 147 Cal.App.4th Supp. at p. 13.)

After reviewing the parties' declarations, court rulings, and arbitration rulings, the court finds that Mr. Mousavi's requested \$600 hourly rate is excessive. Based on the moving papers, Mr. Mousavi has been admitted to practice in California for less than two years and has not litigated as many cases as other attorneys who have requested \$600 per hour. Because Mr. Mousavi is the principal of his practice and does have some experience with consumer-related litigation, the court lowers his requested hourly rate to \$500.

Attorney Name

Requested Hourly Rate

Approved Hourly Rate

Arvin Mousavi

\$600

\$500

Paralegal

Requested Hourly Rate

Approved Hourly Rate

No Name Provided.

\$250

\$250

2. Billing Entries

Plaintiff requests fees for 25 hours of attorney and paralegal work, including 8.6 hours for the instant motion.

The Song-Beverly Consumer Act only entitles Plaintiffs to

attorney fees for "actual time expended."

(Civ. Code, § 1794, subd. (d).)

This means an analysis as to whether the fees and costs sought are reasonable under the circumstances is required.

(Levy v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807,

816.) "A prevailing buyer has the burden

of 'showing that the fees incurred were 'allowable,' were reasonably necessary

to the conduct of the litigation and were 'reasonable in amount.'" (Hanna

v. Mercedes-Benz USA, LLC (2019) 36 Cal.App.5th 493, 507, citations

omitted.) A verified fee bill is prima

facie evidence that the services listed were necessarily incurred. (Hadley v. Krepel (1985) 167

Cal.App.3d 677, 682.) If a fee request

is opposed, "[g]eneral arguments that fees claimed are excessive, duplicative,

or unrelated do not suffice." (Premier Med. Mgmt. Sys. v. Cal. Ins.

Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.) Once an objection to the fees has been

raised, then plaintiff's counsel bears the burden of showing that the fees were

reasonably necessary, and the court has the discretion to reduce fees

awarded. (En Palm, LLC v Teitler

Family Trust (2008) 162 Cal.App.4th 770, 775.)

In determining the reasonableness of fees, courts look to

the factors from Church of Scientology v. Wollersheim (1996) 42

Cal.App.4th 628, disapproved on other grounds by Equilon Enters. v. Consumer

Cause, Inc. (2002) 29 Cal.4th 53, 68 fn.5.

The factors from Wollersheim are (1) the amount of money involved

in the litigation; (2) the nature of the litigation and its difficulty and the

intricacies and importance of the litigation; (3) the skill required and

employed in handling the litigation, the necessity for skilled legal training

and ability in trying the case, and counsel's education and experience in the

particular type of work involved; (4) the attention given to the case; (5) the

success of the attorneys efforts; and (6) the time consumed by the litigation. (Id.)

Defendant asks the court to reduce the requested hours

due to counsel's use of a templated complaint, improper billing for clerical

tasks, and excessive billing for the Reply and Request for Dismissal. (Opp. at pp. 13:18-14:26.) Defendant also presents a chart identifying

specific billing entries and its requested reductions. (Declaration of Donna Hooper, Exh. A.)

After reviewing Defendant's arguments and evidence as

well as Plaintiff's moving papers and reply, the court reduces the requested

fees for attorney Mousavi by 2.8 hours and the paralegal's hours by 1.1 hours because several entries are excessive (including slight edits to a templated Complaint) and involve clerical tasks (service, filing, preparing a release that does not exist, and receiving documents). The court also reduces the anticipated Reply hours by 1.0 hour because the 4.8-hour request is excessive based on the opposition and reply papers. The court does not strike hours for post-settlement coordination of the vehicle surrender.

Attorney Name

Requested Hours

Approved Hours

Approved

Rate

Total

Arvin Mousavi

22.5

19.7

\$500

\$9,850

Paralegal

Requested Hours

Approved Hours

Approved

Rate

Total

No Name Provided.

2.5

1.4

\$250

\$350

Total approved attorney and paralegal fees: \$10,200

B. Costs and Expenses

Plaintiff seeks \$631.02 in costs and expenses incurred in litigating this matter. (6/08/2026 Memorandum of Costs.) Defendant does not challenge this request.

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk[.] The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules of Court, rule 3.1700(a)(1).) Under the law, the court presumes a verified memorandum of costs is correct. However, a party may contest the costs that a prevailing party seeks. (Code Civ. Proc., § 1034 subd. (a).) The challenging party has the burden of demonstrating that those costs are unreasonable or unnecessary. (Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486.)

Because the request is unopposed, the court grants Plaintiff's request for \$631.02 in costs and expenses.

CONCLUSION and ORDER

Plaintiff's motion for attorney fees, costs,
and expenses is granted in the reduced amount of \$10,831.02: \$10,200 in attorney fees and \$631.02 in costs
and expenses.

Plaintiff to give notice.